

Module 5: Welfare and Rights Issues in Animal Agriculture: Part 2

Rights Issues

Week 3 | Online-Synchronous | Tuesday

This session introduces **animal rights** as a moral and political framework that goes beyond improving conditions within animal agriculture and instead questions the legitimacy of using animals as means to human ends.

Where welfare approaches ask *how animals are treated*, rights-based approaches ask *whether animals should be used at all*, particularly when such use predictably involves harm, coercion, and deprivation. The session explores why rights-based arguments emerge in response to the limitations of welfare reforms and why they remain contested within food systems, policy, and advocacy spaces.

Participants are encouraged to engage with animal rights not as an identity or slogan, but as a serious ethical position with concrete implications for law, policy, and movement strategy.

Key Concepts

Animal Welfare vs Animal Rights

Welfare approaches generally accept animal use in principle and seek to reduce suffering within existing systems. Rights-based approaches challenge this premise, arguing that certain uses of animals—especially for food—violate animals' fundamental interests regardless of how “humanely” they are treated.

This session examines why welfare reforms can coexist with continued large-scale harm, and why rights arguments often arise where welfare reaches its limits.

Moral Status and Inherent Value

Participants are introduced to the idea that animals may possess **moral status** based on sentience—the capacity to experience pain, pleasure, and suffering—rather than intelligence, productivity, or usefulness to humans. This concept underpins rights-based critiques of animal agriculture.

Rights as Constraints

Unlike welfare standards, which often operate as minimum thresholds or incremental improvements, rights function as **constraints**—boundaries that should not be crossed. This helps explain why rights advocates oppose practices such as killing animals for food even under improved welfare conditions.

Resources

A. Foundational and Contemporary Animal Rights Perspectives

1. [Regan, T. – The Case for Animal Rights](#)

Regan's work remains foundational for rights-based thinking. His argument that animals are "subjects-of-a-life" with inherent value underpins much contemporary animal rights theory. As you read, focus on how rights differ fundamentally from welfare improvements or cost-benefit calculations.

2. [Aph Ko - Racism as Zoological Witchcraft \(podcast\)](#)

Aph Ko represents a contemporary abolitionist perspective that critiques welfare reform as a system-stabilizing strategy rather than a pathway to liberation.

3. [Donaldson, S., & Kymlicka, W. – Zoopolis: A Political Theory of Animal Rights](#)

This work reframes animal rights as a political theory rather than only a moral stance, introducing concepts such as citizenship, sovereignty, and co-existence. Focus on how this shifts rights discourse from individual behavior to institutional design.

B. Rights, Law, and Contemporary Practice

1. [Washington State Legislature – Octopus Farming Ban \(2024\)](#)

Washington became the first jurisdiction in the world to ban octopus farming outright. The ban was justified on ethical, ecological, and animal welfare grounds, recognizing octopuses' high intelligence and complex needs. This case is crucial because it shows a **precautionary, rights-adjacent ban**, not a welfare standard.

2. [California State Legislature – Assembly Bill 3162: Prohibition on Octopus Farming](#)

California followed with its own ban, reinforcing the principle that some forms of animal use may be deemed unacceptable regardless of welfare mitigation. Compare this with how pigs, chickens, and fish are typically regulated rather than prohibited

3. [European Union – End the Cage Age European Citizens' Initiative](#)

While framed as a welfare reform, this initiative forced the EU to commit to phasing out cages for farmed animals. It is useful for examining the **boundary between welfare reform and rights-based constraints**, and where reform may open or close abolitionist pathways.

4. [Nonhuman Rights Project – Recent Habeas Corpus and Legal Personhood Cases](#)

These cases illustrate how rights claims are tested within existing legal systems. Focus on what courts are willing to recognize (bodily liberty, sentience) and where they draw limits.

C. Asia-Pacific Animal Rights and Sentience Precedents

1. [India – Supreme Court and High Court Jurisprudence on Animal Sentience](#)

Indian courts have repeatedly affirmed that animals are sentient beings with intrinsic value. Key rulings (including Animal Welfare Board of India v. A. Nagaraja and subsequent High Court decisions) recognize animals' right to live with dignity and impose affirmative duties on humans to protect animal welfare. These decisions move beyond welfare compliance toward rights-adjacent constitutional reasoning, grounding animal protection in dignity rather than productivity.

2. [Pakistan – Lahore High Court: Recognition of Animal Rights and State Responsibility](#)

The Lahore High Court has issued landmark judgments recognizing animals as sentient beings entitled to legal protection, emphasizing that humans act as trustees rather than owners of animals. The court explicitly frames animals as rights-holders within an Islamic and constitutional ethics framework, challenging the idea that animal rights are a Western construct.

3. [Nepal – Supreme Court Decisions on Animal Welfare as a Constitutional Obligation](#)

Nepal's Supreme Court has affirmed that animal welfare is a state obligation tied to environmental protection and public morality, with rulings that recognize animals' interests as legally relevant. These cases situate animal protection within constitutional environmentalism, linking rights, ecology, and intergenerational justice.

Reflection – Welfare and Rights

Please answer briefly. One sentence or even a phrase is enough.

1. When you hear “*animal welfare*” versus “*animal rights*,” what is the **first difference** that comes to mind?
2. Think of **one example** from the session (e.g., octopus farming bans, an Asia-Pacific court ruling). Does this example feel more like *making animal use better* or *saying a use should not exist at all*?
3. Right now, which feels more compelling to you—and it’s okay if this changes later:
 - improving how animals are treated, or
 - questioning whether some animal uses should happen at all?

Note: There are no correct answers. This reflection is only meant to help you notice how your thinking is evolving.